53. Same; persons appointed to execute process.—Every person appointed to execute process under section 50 of this title shall be entitled to a fee of $5 for each party he may arrest and take before any commissioner, with such other fees, as may be deemed reasonable by the commissioner for any additional services necessarily performed by him, such as attending at the examination, keeping the prisoner in custody, and providing him with food and lodging during his detention, and until the final determination of the commissioner; such fees to be made up in conformity with the fees usually charged by the officers of the courts of justice within the proper district or county, as near as may be practicable, and paid out of the Treasury of the United States on the certificate of the judge of the district within which the arrest is made, and to be recoverable from the defendant as part of the judgment in case of conviction. (R. S. § 1987.)

54. Speedy trial.—Whenever the President has reason to believe that offenses have been, or are likely to be committed against the provisions of chapter 3 of Title 18, or of sections 240, 428, 443 to 445 of said Title 18, or of section 51 of this title, within any judicial district, it shall be lawful for him, in his discretion, to direct the judge, marshal, and district attorney of such district to attend at such place within the district, and for such time as he may designate, for the purpose of the more speedy arrest and trial of persons so charged, and it shall be the duty of every judge or other officer, when any such requisition is received by him to attend at the place and for the time therein designated. (R. S. § 1988.)

55. Aid of military and naval forces.—It shall be lawful for the President of the United States, or such person as he may empower for that purpose, to employ such part of the land or naval forces of the United States, or of the militia, as may be necessary to aid in the execution of judicial process issued under any of the preceding sections, or as shall be necessary to prevent the violation and enforce the due execution of the provisions of this title. (R. S. § 1989.)

56. Peonage abolished.—The holding of any person to service or labor under the system known as peonage is abolished and forever prohibited in any Territory or State of the United States; and all acts, laws, resolutions, orders, regulations, or usages of any Territory or State, which have heretofore established, maintained, or enforced, or by virtue of which any attempt shall hereafter be made to establish, maintain, or enforce, directly or indirectly, the voluntary or involuntary service or labor of any persons as peons; in liquidation of any debt or obligation, or otherwise, are declared null and void. (R. S. § 1990.)

Chapter 4.—FREEDMEN.

Sec.
61. Laws continued in force.
62. Laws enforced by Secretary of War.
63. Claims for pay or bounty; payment.
64. Retained bounty fund; application for payments.
65. Who deemed wife and children of colored soldiers.

Section 61. Laws continued in force.—All laws and parts of laws pertaining to the collection and payment of bounty, prize money, and other legitimate claims of colored soldiers, sailors, and marines, or their heirs, shall remain in force until otherwise ordered by Congress. (R. S. § 2032.)

62. Laws enforced by Secretary of War.—The Secretary of War is authorized to carry into effect all laws and parts of laws referred to in the preceding section, and to this end he may employ such clerical force as he deems necessary. (R. S. § 2033.)

63. Claims for pay or bounty; payment.—All sums due upon certificates issued, or which may be issued in settlement of claims for pay, bounty, prize money, or other moneys due to colored soldiers, sailors, or marines, or their legal representatives, shall be paid in the same manner as similar claims are paid to white soldiers, sailors, and marines, but no such certificate shall be issued until it shall have been ascertained that the application is made by the original claimant, or, if he be dead, by his true living legal representative, nor until the identity of such claimant or representative as the case may be, shall have been duly established. If an agent or attorney be employed, the allowance for his services shall not in any case exceed that contemplated in the scale of fees and allowances fixed by joint resolution July 26, 1866, Numbered 86, section 2, Fourteenth Statutes, page 368, and no power of attorney, transfer or assignment of the amount of such claims, or any part thereof, shall in any case be recognized. (Mar. 3, 1879, c. 182, § 2, 20 Stat. 402; Feb. 1, 1888, c. 4, § 1, 25 Stat. 9.)

64. Retained bounty fund; application for payments.—The unexpended balance of the retained fund in the custody of the Freedmen's Bureau prior to July 1, 1902, is covered into the Treasury as "Miscellaneous receipts." Upon application by parties entitled to any portion of the money so covered in, the Secretary of the Treasury is authorized and directed to pay the amount found due in the same manner and from the same appropriation as claims for bounty to volunteer soldiers are now paid. (July 1, 1902, c. 1351, 32 Stat. 556.)

65. Who deemed wife and children of colored soldiers.—In determining who is the wife or child of any colored soldier, within the meaning of this chapter, evidence that the soldier and the woman claimed to be his wife cohabited or associated as husband and wife, and so continued to cohabit or associate at the time of enlistment, or evidence that a form of marriage, whether such marriage was authorized or recognized by law or not, was entered into by them, and that the parties thereafter lived together as husband and wife, and so continued to live together at the time of the enlistment, shall be deemed sufficient proof of marriage; and the children born of any such marriage shall be taken to be the children embraced within the provisions of this chapter, whether such marriage was or was not dissolved at the time of the enlistment. (R. S. § 2037.)

Chapter 5.—ALIEN OWNERSHIP OF LAND.

Sec.
71. Acquisition or ownership of land in Territories by aliens.
72. Same; lands previously acquired.
73. Same; acquisition by inheritance or in collection of debts.
74. Same; conveyance by aliens before escheat proceedings.
75. Same; escheat proceedings.
76. Same; condemnation and sale of lands.
77. Same; public lands.
78. Same; real estate in District of Columbia.
79. Same; real estate in District of Columbia; treaties.
80. Same; real estate in District of Columbia; alien owned corporations.
81. Same; real estate in District of Columbia; forfeiture of property.
82. Same; real estate in District of Columbia; foreign legations.
83. Public lands in Hawaii; right to acquire in general.
84. Same; conveyance or other transfer to alien.
85. Same; preference right to purchase land to persons declaring intention to become citizens.
86. Same; sale of agricultural land to persons declaring intention to become citizens.

Section 71. Acquisition or ownership of land in Territories by aliens.—No alien or person who is not a citizen of the United States, or who has not declared his intention to become a citizen of the United States in the manner provided by law shall acquire title to or own any land in any of the Territories of the United States except as hereinafter provided. The prohibition of this section shall not apply to cases in which the right to hold or dispose of lands in the United States is secured by existing treaties to citizens or subjects of foreign countries, which rights, so far as they may exist by force of any such treaty, shall continue to exist so long as such treaties are in force, and no longer. (Mar. 2, 1887, c. 363, § 1, 29 Stat. 618.)

72. Same; lands previously acquired.—Sections 71 to 77 of this title shall not apply to land owned in any of the Territories of the United States by aliens, which was acquired on or before March 3, 1887, so long as it is held by the then owners, their heirs or legal representatives, nor to any alien who shall become a bona fide resident of the United States, and any alien who shall become a bona fide resident of the United States, or shall have declared his intention to become a citizen of the United States in the manner provided by law, shall have the right to acquire and hold lands in either of the Territories of the United States upon the same terms as citizens of the United States. If any such resident alien shall cease to be a bona fide resident of the United States then such alien shall have ten years from the time he ceases to be such bona fide resident in which to alienate such lands. This section and sections 71, 73 to 77 shall not be construed to prevent any persons not citizens of the United States from acquiring or holding lots or parcels of lands in any incorporated or platted city, town, or village, or in any mine or mining claim, in any of the Territories of the United States. (Mar. 2, 1897, c. 363, § 2, 29 Stat. 618.)

73. Same; acquisition by inheritance or in collection of debts.—Sections 71 to 77 of this title shall not prevent aliens from acquiring lands or any interests therein by inheritance or in the ordinary course of justice in the collection of debts, nor from acquiring liens on real estate or any interest therein, nor from lending money and securing the same upon real estate or any interest therein; nor from enforcing any such lien, nor from acquiring and holding title to such real estate, or any interest therein, upon which a lien may have heretofore or may hereafter be fixed, or upon which a loan of money may have been heretofore or hereafter may be made and secured. All lands so acquired shall be sold within ten years after title shall be perfected in him under said sale or the same shall escheat to the United States and be forfeited as hereinafter provided. (Mar. 2, 1897, c. 363, § 3, 29 Stat. 618.)

74. Same; conveyance by aliens before escheat proceedings.—Any alien who shall hold lands in any of the Territories of the United States in contravention of the provisions of sections 71 to 77 of this title may nevertheless convey his title thereto at any time before the institution of escheat proceedings as hereinafter provided. If any such conveyance shall be made by such alien, either to an alien or to a citizen of the United States, in trust and for the purpose and with the intention of evading the provisions of said sections, such conveyance shall be null and void, and any such lands so conveyed shall be forfeited and escheat to the United States. (Mar. 2, 1897, c. 363, § 4, 29 Stat. 618.)

75. Same; escheat proceedings.—It shall be the duty of the Attorney General of the United States, when he shall be informed or have reason to believe that land in any of the Territories of the United States are being held contrary to the provisions of sections 71 to 77 of this title, to institute or cause to be instituted suit in behalf of the United States in the district court of the Territory in the district where such land or a part thereof may be situated, praying for the escheat of the same on behalf of the United States to the United States. Before any such suit is instituted the Attorney General shall give or cause to be given ninety days' notice by registered letter of his intention to sue, or by personal notice directed to or delivered to the owner of said land, or the person who last rendered the same for taxation, or his agent, and to all other persons having an interest in such lands of which he may have actual or constructive notice. In the event personal notice can not be obtained in some one of the modes above provided, then said notice shall be given by publication in some newspaper published in the county where the land is situate, and if no newspaper is published in said county then the said notice shall be published in some newspaper nearest said county. (Mar. 2, 1897, c. 363, § 5, 29 Stat. 619.)

76. Same; condemnation and sale of lands.—If it shall be determined upon the trial of any such escheat proceedings that the lands are held contrary to the provisions of sections 71 to 77 of this title, the court trying said cause shall render judgment condemning such lands and shall order the same to be sold as under execution; and the proceeds of such sale, after deducting costs of such suit, shall be paid to the clerk of such court so rendering judgment, and said fund shall remain in the hands of such clerk for one year from the date of such payment, subject to the order of the alien owner of such lands, or his heirs or legal representatives; and if not claimed within the period of one year, such clerk shall pay the same into the treasury of the Territory in which the lands may be situated, for the benefit of the available school fund of said Territory. The defendant in any such escheat proceedings may, at any time, before final judgment, suggest and show to the court that he has conformed with the law, either becoming a bona fide resident of the United States, or by declaring his intention of becoming a citizen of the United States, or by the doing or happening of any other act which, under the provisions of sections 71 to 77, would entitle him to hold or own real estate, which being admitted or proved, such suit shall be dismissed on payment of costs and a reasonable attorney fee to be fixed by the court. (Mar. 2, 1897, c. 363, § 6, 29 Stat. 619.)

77. Same; public lands.—Sections 71 to 76 of this title shall not in any manner be construed to authorize aliens to acquire title from the United States to any of the public lands of the United States or to in any manner affect or change the laws regulating the disposal of the public lands of the United States. (Mar. 2, 1897, c. 363, § 7, 29 Stat. 619.)

78. Same; real estate in District of Columbia.—Aliens shall have the same rights and privileges concerning the acquisition, holding, owning, and disposition of real estate in the District of Columbia as are conferred upon aliens in respect of real estate in the Territories of the United States by sections 71 to 77 of this title. (Feb. 23, 1905, c. 733, 33 Stat. 733.)

79. Same; real estate in District of Columbia; treaties.—It shall be unlawful on and after March 3, 1887, for any person or persons not citizens of the United States, or who have not lawfully declared their intention to become such citizens, or for any corporation not created by or under the laws of the United States or of some State or Territory of the United States, to acquire, hold, or own real estate so acquired, or any interest therein, in the District of Columbia, except such as may be acquired by inheritance or in good faith in the ordinary course of justice in the collection of debts heretofore created. The prohibition of this section shall not apply to cases in which the right to hold or dispose of lands in the United States is secured by existing treaties to the citizens or subjects of foreign countries, which rights, so far as they may exist by force of any such treaty shall continue to exist so long as such treaties are in force, and no longer. (Mar. 3, 1887, c. 340, § 1, 24 Stat. 476.)

80. Same; real estate in District of Columbia; alien-owned corporations.—No corporation or association of which over 50 percentum of the stock is or may be owned by any person or persons, corporation or corporations, association or associations, not citizens of the United States, shall on and after March 3, 1887, acquire or hold or own any real estate so acquired in the District of Columbia. (Mar. 3, 1887, c. 310, § 2, 24 Stat. 477; June 30, 1902, c. 1329, 32 Stat. 530.)

81. Same; real estate in District of Columbia; forfeiture of property.—All property acquired, held, or owned in violation of the provisions of sections 79 and 80 of this title shall be forfeited to the United States, and it shall be the duty of the

Attorney General to enforce every such forfeiture by bill in equity or other proper process. In any suit or proceeding that may be commenced to enforce the provisions of said sections, it shall be the duty of the court to determine the very right of the matter without regard to matters of form, joinder of parties, multifariousness, or other matters not affecting the substantial rights either of the United States or of the parties concerned in any such proceeding arising out of the matters in the said sections mentioned. (Mar. 3, 1887, c. 340, § 4, 24 Stat. 477.)

82. Same; real estate in District of Columbia; foreign legations.—Sections 79 to 81 inclusive of this title shall not apply to or operate in the District of Columbia, so far as relates to the ownership of legations, or the ownership of residences by representatives of foreign governments, or attachés thereof. (Mar. 9, 1888, c. 30, 25 Stat. 45.)

83. Public lands in Hawaii; right to acqnire in general.—No person, including individuals, partnership, corporation, and association, who is an alien, shall be entitled to receive any certificate of occupation, right of purchase lease, cash freehold agreement, or special homestead agreement in public lands in Hawaii, unless he has declared his intention to become a citizen of the United States as provided by law. No person who has so declared his intention, and taken and held under any such certificate, lease, or agreement, shall continue to hold, or become entitled to a homestead lease or patent to the land, unless he becomes a citizen within five years after so taking. (Apr. 30, 1900, c. 339, § 73, 31 Stat. 154; Apr. 2, 1908, c. 124, 35 Stat. 56; May 27, 1910, c. 258, § 5, 36 Stat. 444; July 9, 1921, c. 42, §§ 301-311, 42 Stat. 116-119.)

84. Same; conveyance or other transfer to alien.—No public land in Hawaii for which any certificate of occupation, right of purchase lease, or cash freehold or special homestead agreement is issued or any part thereof, or interest therein or control thereof, shall, without the written consent of the Commissioner of Public Lands of the Territory of Hawaii, and governor, thereafter, whether before or after a homestead lease or patent has been issued thereon, be or be contracted to be in any way, directly or indirectly, by process of law or otherwise, conveyed, mortgaged, leased, or otherwise, transferred to, or acquired or held by, or for the benefit of any alien. The prohibitions of this section shall not apply to transfers or acquisitions by inheritance or between tenants in common. (Apr. 30, 1900, c. 339, § 73, 31 Stat. 154; Apr. 2, 1908, c. 124, 35 Stat. 56; May 27, 1910, c. 258, § 5, 36 Stat. 444; July 9, 1921, c. 42, §§ 301-311, 42 Stat. 116-119.)

85. Same; preference right to purchase land to persons declaring intention to become citizens.—The Commissioner of Public Lands of the Territory of Hawaii, with the approval of the governor, may give to any person who has legally declared his intention to become a citizen of the United States, and thereafter becomes such, and who has, or whose predecessors in interest have improved any parcel of public lands and resided thereon continuously for the ten years next preceding the application to purchase, a preference right to purchase so much of such parcels and such adjoining land as may reasonably be required for a home, at a fair price to be determined by three disinterested citizens to be appointed by the governor. In the determination of such purchase price, the commissioner may, if he deems it just and reasonable, disregard the value of the improvements on such parcel and adjoining land. If such parcel of public lands is reserved for public purposes, either for the use of the United States or the Territory of Hawaii, the commissioner may, with the approval of the governor, grant to such person a preference right to purchase public lands which are of similar character, value, and area, and which are situated in the same land district. The privilege granted by this section shall not extend to any original lessee or to an assignee of an entire lease of public lands. (Apr. 30, 1900, c. 339, § 73, 31 Stat. 154; Apr. 2, 1908, c. 124, 35 Stat. 56; May 27, 1910, c. 258, § 5, 36 Stat. 444; July 9, 1921, c. 42, §§ 301-311, 42 Stat. 116-119.)

86. Same; sale of agricultural land to persons declaring intention to become citizens.—The Commissioner of Public Lands of the Territory of Hawaii shall, with the approval of the board of public lands, sell to any person who has legally declared his intention to become a citizen of the United States, for residence purposes lots and tracts of agricultural lands, not exceeding three acres in area. (Apr. 30, 1900, c. 339, § 73, 31 Stat. 154; Apr. 2, 1908, c. 124, 35 Stat. 56; May 27, 1910, c. 258, § 5, 36 Stat. 444; July 9, 1921, c. 42, §§ 301-311, 42 Stat. 116-119.)

Chapter 6.—IMMIGRATION.

BUREAU OF IMMIGRATION, IMMIGRATION OFFICERS, AND IMMIGRANT STATIONS

Sec.
101. Commissioner General of Immigration; Assistant Commissioner General of Immigration; appointment; reports; quarters.
102. Same; administration of immigration laws; rules and regulations; contracts for support of distressed aliens; detail of immigration officers.
103. Same; administration of alien contract labor laws.
104. Same; administration of Chinese exclusion laws.
105. Division of information in Bureau of Immigration; distribution of aliens; State agents.
106. Registry of aliens by Bureau of Immigration.
107. Commissioners of immigration; appointment.
108. Immigration officers; duties.
109. Same; appointment; compensation.
110. Arrest without warrant of aliens by employees of Bureau of Immigration.
111. Special immigration inspectors at Washington.
112. Same; officers and clerk enforcing alien contract labor laws.
113. Detail of inspectors and matrons on vessels carrying immigrant or emigrant passengers.
114. Lease of immigrant station at Charleston.
115. Disposal of privileges at immigrant stations; sale of liquors.
116. Local jurisdiction over immigrant stations.
117. Use of hospital at Ellis Island by Public Health Service.
118. Motor vehicles for enforcement of immigration and Chinese exclusion laws.

REGULATION AND RESTRICTION OF IMMIGRATION IN GENERAL

131. Control of immigration.
132. Tax on aliens entering United States; lien of tax on vessels, etc.
133. Head tax on aliens and other moneys covered into Treasury.
134. Refunding head tax.
135. No tax or charge by State on immigrants.
136. Aliens excluded.
137. Other aliens excluded.
138. Importation of aliens for immoral purposes; attempt to reenter after deportation; penalty.
139. Contract laborers; prepaying transportation or assisting importation; forfeiture and punishment.
140. Same; reward to informer.
141. Contracts for labor or service of aliens, previous to importation, void.
142. Advertisements of employment to aliens, etc.
143. Solicitation of immigration by transportation companies.
144. Bringing in or harboring or concealing certain aliens.
145. Bringing in aliens subject to disability, or afflicted with disease.
146. Prevention of unauthorized landing of aliens; prima facie proof of landing.
147. Detention of aliens for observation and examination; inspectors to report condition of vessels.
148. Lists of alien passengers arriving or departing; record of resident aliens and citizens leaving for foreign country.
149. Grouping of alien passengers in lists; identification tickets.
150. Refusal or failure to furnish lists of alien passengers.
151. Inspection of alien passengers on arrival; temporary removal for examination.
152. Physical and mental examination of alien passengers; regulations.
153. Boards of special inquiry; appointment.
154. Immediate deportation of aliens brought in violation of law; cost of maintenance and return.